

25SMCV05462 25SMCV05462

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-06-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C06%2F23%2F2026

Source SHA-256: ff68407a2f7fed3220c42ff26d388daef3582adad567a7a1d9dcd51ec3acca67

Case Number: 25SMCV05462 Hearing Date: June 23, 2026 Dept: N

TENTATIVE RULING

Plaintiffs James Scott and Brigitte Secard's Motion to Strike Defendant's Answer and Affirmative Defenses is GRANTED without leave to amend as to the twelfth and seventeenth affirmative defenses and otherwise DENIED.

Plaintiffs James Scott and Brigitte Secard to give notice.

Plaintiffs James Scott and Brigitte Secard ("Plaintiffs") move to strike Defendant Kevin Mullen ("Defendant")'s answer and affirmative defenses contained therein on the grounds that the answer contains irrelevant, false, improper, duplicative, conclusory, and legally invalid matter, including affirmative defenses that are unsupported by any factual allegations, merely negate elements of Plaintiffs' causes of action, are duplicative and confusing, and purport to reserve unspecified defenses not recognized under California law.

The Court has reviewed the answer and finds that the affirmative defenses are generally proper, and the facts supporting each affirmative defense can be clarified during discovery. However, the eleventh and twelfth affirmative defenses are identical, such that the Court finds it proper to strike the twelfth affirmative defense, and the seventeenth affirmative defense is improper, as there is no basis to assert a reservation of right to amend the answer, i.e., Defendant must file a noticed motion to do so. Accordingly, Plaintiffs James Scott and Brigitte Secard's Motion to Strike Defendant's Answer and Affirmative Defenses is GRANTED without leave to amend as to the twelfth and seventeenth affirmative defenses and otherwise DENIED.